

Murari Lal v. State of U.P.

Allahabad High Court · Division Bench · 27 August 2014 · Writ - C No. 44645 of 2014 · **Writ disposed; connection to be re-energised on payment of dues, including Clause 6.14 instalments.**

HEADNOTE

A defaulting tubewell consumer facing permanent disconnection was directed to approach the Executive Engineer. If he cleared the dues as directed, including by easy instalments under Clause 6.14 of the Electricity Supply Code, 2005, the connection was to be re-energised in accordance with the rules within three weeks, subject to no other legal impediment.

FACTUAL SUMMARY

Murari Lal, owner of a tubewell supplied by an electricity connection, defaulted in payment of electricity dues and faced permanent disconnection. He approached the High Court seeking restoration. Counsel submitted that in a similar matter of one Ganga Prasad the Executive Engineer had restored supply on the Superintending Engineer's orders because of a discrepancy in computer-maintained invoice data. The petitioner stated he was prepared to pay the entire dues. Counsel for respondents 2 and 3 was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility and re-energisation

HOLDING

Where a defaulting consumer facing permanent disconnection is prepared to pay the arrears, the Executive Engineer may permit clearance of dues by easy instalments under Clause 6.14 of the Electricity Supply Code, 2005, and upon such clearance the connection shall be re-energised in accordance with the rules within three weeks, subject to no other legal impediment. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A defaulting tubewell consumer facing permanent disconnection was directed to approach the Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — COMPUTER INVOICE DISCREPANCY

The alleged Ganga Prasad parallel and any error in computer-maintained invoice data were not adjudicated. ¶ 1